

MEMORANDUM OF UNDERSTANDING

This Memorandum of Understanding is being entered into by and between the Delhi Township Fire Department ("Department") and the International Association of Firefighters, Local 3389, ("IAFF"). These parties will be collectively referred to as the "Parties."

1. The Parties entered into and executed a CBA effective December 18, 2019. The Parties agreed to implement sleep credits in order to reduce the FLSA overtime incurred by the Department. Each employee will have the option of participating in the sleep credit program by submitting written notice to the Employer of participation for the coming year. For the Employee participating in the sleep credit program, the following terms of this MOU shall apply.

2. The Parties agree to meet on a quarterly or more frequent basis in order to review and discuss potential changes to the Employer's policies in order to effectively implement the sleep credits.

3. The Parties agree that the Department can deduct up to 8 hours per 24 hours shift for time spent sleeping of participating Employees. The Parties will meet to develop designated sleep periods for Employees on each unit day.

4. The Parties agree that any calls to duty that interrupt a night's sleep will be counted as worktime. Further, if an Employee is unable to have at least 5 hours of sleep, then the sleep credit will not be counted for a particular shift.

5. The Parties agree that each Employee is responsible for documenting in writing any interruptions to sleep that are a result of a call to duty. Further, each Employee shall certify at the close of a shift the duration of an interruption, if any.

6. The Parties agree that a call to duty shall be defined as any fire or EMS run or other dispatch to any work related service.

7. The Parties acknowledge and agree that if the FLSA regulations require Employees to be on duty for more than 24 hours for the sleep credits to apply, the Employer may adjust work schedules to provide an additional 15 minutes to the typical 24 hour shift. In entering into this Agreement, the Parties acknowledge and agree that the Department has adequate facilities for sleeping.

8. Either Party may give 30 days written notice to terminate this MOU.

9. Employees shall receive their regular rate of pay for Sleep Credit hours, but Sleep Credit hours will not be counted towards the Employee's total hours in paid status pursuant to Article 25, Section 25.02 of the Collective Bargaining Agreement for purposes of calculating overtime.

10. Bargaining Unit Employees with a sufficient number of Sleep Credit hours in a twenty-eight (28) day period, to avoid overtime pay status for a particular volunteer shift, shall receive first priority when volunteering for the extra shift.

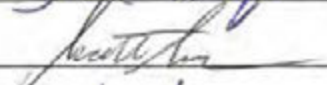
11. Upon Ratification, this MOU shall be attached to the Parties' Collective Bargaining Agreement, and will be added to all subsequent Collective Bargaining Agreements between the Delhi Township Fire Department and the International Association of Firefighters, Local 3389 unless the MOU is terminated consistent with Section Eight (8) of this MOU or as amended through collective bargaining. All alleged violations of this MOU shall be resolved pursuant to the grievance and arbitration provisions of the Collective Bargaining Agreement.

This Memorandum of Understanding is dated and effective this 18th day of December, 2019.

DELHI TOWNSHIP PROFESSIONAL
FIRE FIGHTERS ASSOCIATION

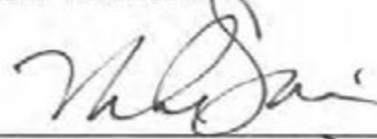




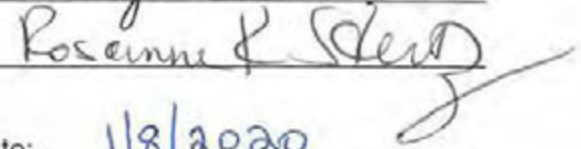


Date: 1/6/2020

DELHI TOWNSHIP







Date: 1/8/2020

APPROVED AND JOURNALIZED at a special meeting of the Delhi Township Board of Trustees on December 26, 2019 by Resolution Number 2019-213.